

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Coleman	Team: Team # 2	CCRB Case #: 200705078	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/10/2007 10:10 PM	Location of Incident: Bedford and Dekalb Avenues	18 Mo. SOL 10/10/2008	Precinct: 79
Date/Time CV Reported Thu, 04/12/2007 9:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/12/2007 9:57 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Carlos Vega	18843	916854	079 PCT
2. POM Clifford Louis	06651	927098	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Clifford Louis	Abuse: Officer Clifford Louis questioned § 87(2)(b)	A . Exonerated
B . POM Carlos Vega	Abuse: Officer Carlos Vega questioned § 87(2)(b)	B . Exonerated
C . POM Clifford Louis	Force: Officer Clifford Louis pointed his gun at § 87(2)(b)	C . Unfounded
D . POM Carlos Vega	Abuse: Officer Carlos Vega drew his gun.	D . Unfounded
E . POM Clifford Louis	Abuse: Officer Clifford Louis issued a summons to § 87(2)(b)	E . Substantiated
F . POM Carlos Vega	Abuse: Officer Carlos Vega issued a summons to § 87(2)(b)	F . Substantiated

Synopsis

On April 10, 2007 at approximately 10:00pm, Officer Clifford Louis and Officer Carlos Vega observed § 87(2)(b) standing outside 994 Bedford Avenue at the corner of Dekalb Avenue and Bedford Avenue in Brooklyn. They drove around the block and returned to see § 87(2)(b) still standing there. Both officers recognized § 87(2)(b) as someone who had recently been on parole and had been arrested multiple times on that corner for drug-related offenses. The officers pulled over, requested § 87(2)(b)'s identification (**allegation A** and **allegation B**) and called the parole office to confirm that § 87(2)(b) was not still on parole. While seated inside the vehicle, Officer Vega allegedly drew his gun (**allegation C**) and Officer Louis allegedly drew and pointed his gun at § 87(2)(b) (**allegation D**). After the officers discussed it, Officer Vega issued § 87(2)(b) a summons for loitering (**allegation E** and **allegation F**).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
It is therefore recommended that **allegation A** and **allegation B** be *exonerated*. § 87(2)(g)
it is thus recommended that **allegation C** and **allegation D** be *unfounded*. § 87(2)(g)
it is therefore recommended that **allegation E** and **allegation F** be *substantiated*.

Summary of Complaint

- § 87(2)(b) filed a complaint with the CCRB by telephone on April 10, 2007 and was interviewed at the CCRB on April 17, 2007. When he first called, § 87(2)(b) complained of a few incidents dating back to 2005 and involving the same officers. § 87(2)(g)
§ 87(2)(b) is a § 87(2)(b) old black male § 87(2)(b).
On April 10, 2007 at approximately 10:00pm, § 87(2)(b) called his barber, who told him that he had two people in the barbershop already, and that he should come by in 10-15 minutes. Since § 87(2)(b) had extra time, when he reached the corner of DeKalb Avenue and Bedford Avenue, he stopped to talk to workers in front of a bodega at the corner. He spoke with “one of the younger [workers]”¹. § 87(2)(b) also spoke to § 87(2)(b) one of the owners of the bodega². Another owner, § 87(2)(b) and § 87(2)(b) also knew the younger one’s brother, who also worked in the bodega. § 87(2)(b) had just come back from Yemen, and he greeted § 87(2)(b) before he went into the store. § 87(2)(b) stated that he only spoke to § 87(2)(b) and the younger worker. § 87(2)(b) never went into the store himself.
§ 87(2)(b) then noted a marked police car drive down DeKalb Avenue and stop at the corner. There were two uniformed officers inside, Officer Carlos Vega³ (identified by last name by § 87(2)(b) from previous encounters) in the driver’s seat and another officer (identified by police documents as Officer Clifford Louis)⁴ in the front passenger’s seat. Officer Vega called out, “§ 87(2)(b) what’s up? What are you doing here? Didn’t I tell you not to come around here anymore?” The officers spoke with § 87(2)(b) through the front passenger side window. The people to whom § 87(2)(b) was speaking had left by this point, and § 87(2)(b) explained, “A lot of the people from Yemen, they kind of fear the police ... they had went back into the store.” § 87(2)(b) told Officer Vega that he was just getting a haircut. Officer Vega asked § 87(2)(b) if he was still on parole, and § 87(2)(b) replied that he was not. § 87(2)(b) said he

¹ Yemeni male, 22-23 years old, slim build, “5’9”-6’0”, black hair, no facial hair

² Yemeni male, 5’7”, 160 pounds, black hair

³ Hispanic male, uniform, 35-37 years old, 5’3”, 150-160 pounds, black hair

⁴ Black male, uniform, 24-25 years old, 5’8”, 150 pounds, short black hair

could go wherever he wanted to go. Officer Vega said, "You don't have no rights here," and asked § 87(2)(b) for his identification. As § 87(2)(b) approached their vehicle to give Officer Louis his identification, both officers drew their guns. § 87(2)(b) told the officers there was no need to "brandish their guns," and he provided his identification to the officers. The officers said they pulled out their weapons because "you've got multiple arrests in this area." § 87(2)(b) stated that was no reason for the officers to draw their weapons. Officer Louis then pointed his gun at § 87(2)(b)'s abdomen and yelled at § 87(2)(b) to "get back on the sidewalk." Officer Vega used his mobile phone to make a call. § 87(2)(b) stood on the sidewalk and waited. Fifteen or twenty minutes later, Officer Vega called § 87(2)(b) to the police car and made a comment about § 87(2)(b) finishing his parole in January. § 87(2)(b) asked for his identification back, and the officers drew their weapons again and told him to get back on the sidewalk. § 87(2)(b) backed up to the wall of the store, approximately ten feet. Officer Vega told § 87(2)(b) that even though he was not on parole, he would be given a summons for loitering anyway. When § 87(2)(b) approached the vehicle to get his identification and the summons, "the officers brandished their weapons and pointed them at me again." As the officers drove off, they were "laughing and joking as if it were a joke."

§ 87(2)(b) estimated that the incident lasted twenty to thirty minutes. Neither officer got out of their vehicle at any point. During the incident, "One or two people came by and said, 'What's up, § 87(2)(b) but I was so aggravated I really didn't see who it was.'" § 87(2)(b) was upset but did "not do anything to aggravate them because I know how to act around police officers. Anything that you do, verbally or physically, could tip them off." § 87(2)(b) said the officers acted like the whole thing was a joke because of the way that they pulled away in their vehicle. § 87(2)(b) stated that he had numerous interactions with these officers in the past, and they said that "every time they see me they're gonna do that ... Officer Vega also told me, 'I can be nice about this and give you one ticket, or he could take me down to the precinct and give me several tickets. You have multiple arrests in this neighborhood, and I don't want you in this area no more. I have told you that already.'"

§ 87(2)(g) He first provided an account in which the officers "brandished" their weapons three times. When asked clarifying questions, § 87(2)(b) recounted the officers "brandishing" their weapons twice, and said that the only officer to point the gun at him was Officer Louis, and only the second time he drew his gun. Several times throughout the interview, § 87(2)(b) would use the term "they" when it was clear after asking follow-up questions that he meant only one of the officers. § 87(2)(g)

CCRB: Did you have your ID with you?

§ 87(2)(b) No.

CCRB: So what did you do when you didn't have your ID?

§ 87(2)(b) I reached in my wallet and gave them my ID.

At the time of his interview, § 87(2)(b) brought with him a copy of the summons he was issued on the date of incident, § 87(2)(b)

Results of Investigation

Fieldwork/Witness Contact Attempts

On April 23, 2007, Inv. Brown visited Hamood's Deli & Grocery at 994 Bedford Avenue in Brooklyn. Inv. Brown spoke with § 87(2)(b) who was working the register at the time of the canvass. He stated that § 87(2)(b) was in Yemen. The younger man § 87(2)(b) mentioned as having spoken to was § 87(2)(b) who worked the night shift. § 87(2)(b) was asleep at the time of the canvass. However, § 87(2)(b) provided a phone number for the store, where § 87(2)(b) could be reached. § 87(2)(b) stated that he had worked at the bodega that night, though he did not see what happened because the windows in the bodega were blocked. While the CCRB spoke with § 87(2)(b) a man named § 87(2)(b) approached and said he had witnessed the incident. He stated he did not have time to speak with the CCRB then, but he provided a phone number at which he could be reached. § 87(2)(b) stated that officers had stopped § 87(2)(b) and asked him if he was still on parole. § 87(2)(b) said that he and § 87(2)(b) had been "clean" for some time and so had the block. § 87(2)(b) thought that the name of the officer's partner was "Vargas" or "Vasquez." § 87(2)(b) stated he would pick up his son after school and then return to the bodega if the investigators would still be there. The CCRB waited 25 minutes after the time § 87(2)(b) said he would return, but § 87(2)(b) did not appear. Inv. Brown left please call letters

and business cards at 994 Bedford Avenue with § 87(2)(b). The undersigned investigator also entered and spoke with '§ 87(2)(b)' from the 529 Barber Shop at 529 DeKalb Avenue. '§ 87(2)(b)' stated that the barber shop closed at 7pm on Tuesdays, and thus no one would have been a witness to anything that occurred at the time of the incident.

A call was placed to Hamood's Deli on May 3, 2007. § 87(2)(b) answered the phone and stated that § 87(2)(b) was not there. On May 7, 2007, a call was placed to the number provided by § 87(2)(b). A male stated that the undersigned investigator had the wrong number. On that same day, another call was placed to Hamood's Deli. There was no answer and voicemail was not activated. The undersigned investigator visited Hamood's Deli for a second time on May 11, 2007. No additional information was obtained. § 87(2)(b) was unavailable and § 87(2)(b) could not be found. The undersigned investigator left 'please call' letters at the store asking anyone with information to contact the CCRB. There was no response.

Officer Interviews

- *Officer Carlos Vega*

Officer Carlos Vega was interviewed at the CCRB on June 29, 2007. On April 10, 2007, Officer Vega worked a 3:00pm-11:35pm tour patrolling sectors EFKR of the 79th Precinct with Officer Louis. The officers were assigned to marked RMP #2443 and were dressed in uniform. Officer Vega was the operator. Officer Vega had the following memo book entries: 2210: *male stopped, corner of DeKalb and Bedford.* 2212: 96, § 87(2)(b) to § 87(2)(b) New York ID # § 87(2)(b) for loitering. § 87(2)(b) 25- § 87(2)(b) he had no warrants.

Around 10:12pm, Officer Vega and Officer Louis passed the corner of Dekalb Avenue and Bedford Avenue and observed § 87(2)(b) standing on the corner. § 87(2)(b) is a known drug dealer who is known to sell drugs on that corner. Officer Vega also knew that narcotics had been recovered from § 87(2)(b)'s residence during the execution of a search warrant. Officer Louis and Officer Vega observed § 87(2)(b) standing on the corner for approximately two minutes. § 87(2)(b) saw the officers' vehicle and looked away. The officers drove around the block (driving West on Dekalb Avenue to Classon Avenue, to Myrtle Avenue, to Nostrand Avenue, then back to Dekalb Avenue) and returned to the same intersection about 3 minutes later. § 87(2)(b) was still in his previous location. The officers pulled up to a red light at the intersection and observed § 87(2)(b) standing there for the length of a red light. An unknown male black walked over to § 87(2)(b) and gave him a high-five and walked away. Officer Vega did not recall any other individuals in the area at the time. Officer Vega stated that § 87(2)(b) "was looking around like he usually does when he's about to do a transaction." Officer Vega decided to pull over and talk to § 87(2)(b) based on the fact that he had been standing there for some time with no apparent purpose and was a known drug dealer who had multiple arrests at that location for selling drugs. The following exchange occurred during the interview:

Inv. Brown What was it about § 87(2)(b) for [the period of time that the officers observed him] that made you...how does that qualify as loitering?

Officer Vega: It's a known drug-prone location, and he's been arrested numerous times at the same location when he's been observed selling drugs.

Inv. Brown Ok. And in your understanding of loitering, what does one need to do to qualify for that?

Officer Vega: He has to be standing for an amount of time for no purpose.

Officer Vega pulled over the vehicle and, calling across Officer Louis and out the passenger side, asked § 87(2)(b) to approach the vehicle and then asked him to provide identification. § 87(2)(b) was compliant. Officer Vega issued § 87(2)(b) a summons for loitering. He also called the 79th Precinct to check if § 87(2)(b) had any open warrants. In addition, since he knew § 87(2)(b) to have been on parole, Officer Vega called the parole office to check if that was still the case. Officer Vega did so because parolees have a curfew and the stop took place after 10:00pm. § 87(2)(b) had no active warrants and was not on parole, so he was released with the summons.

Officer Vega denied drawing or pointing his weapon at § 87(2)(b) and denied that Officer Louis did so either. § 87(2)(b) was not known to Officer Vega to carry a weapon and Officer Vega did not fear

for his safety at any point during the interaction. Officer Vega did not recall any interaction between Officer Louis and § 87(2)(b).

Officer Vega asked § 87(2)(b) to come over to the vehicle based on the loitering violation. Officer Vega did not ask § 87(2)(b) any further questions about what he was doing in the area. Officer Vega had never arrested § 87(2)(b) previously. When asked if any factors raised his level of suspicion when he saw § 87(2)(b), Officer Vega replied that his previous experience with § 87(2)(b) did so.

- *Officer Clifford Louis*

Officer Clifford Louis was interviewed on June 21, 2007 at the CCRB. On April 10, 2007, Officer Louis worked a 3:00pm-11:35pm patrolling sectors EFKR of the 79th Precinct with Officer Vega. The officers were dressed in uniform and assigned to marked RMP #2443. Officer Vega was the driver. Officer Louis had the following memo book entries: “2210: 1 male stopped c/o Dekalb and Bedford. 2212: 10-96 x 2 by partner.”

At approximately 10:06pm, Officer Vega and Officer Louis were driving westbound on DeKalb Avenue when they reached a red light at the Bedford Avenue intersection. The officers observed § 87(2)(b) standing on the Northwest corner of the intersection outside a deli (Officer Louis did not recall its name). § 87(2)(b) was alone and appeared to be standing on the corner looking around. Officer Louis and Officer Vega were familiar with § 87(2)(b). Officer Louis had issued § 87(2)(b) summonses in the past for trespass and loitering. The trespass summons was issued while § 87(2)(b) was still on parole. Officer Louis knew that § 87(2)(b) had been arrested multiple times for dealing drugs on that specific corner, and stated that Officer Vega had more knowledge and could elaborate further. That corner was known to be § 87(2)(b)'s “spot.” The officers also knew that § 87(2)(b) had recently been on parole. Because of the time that the officers saw him, they thought that § 87(2)(b) might be in violation of his parole because of the curfew imposed on parolees.

The officers observed § 87(2)(b) on the corner for approximately two minutes and discussed stopping him at that point because he apparently had no reason to be standing on that corner. § 87(2)(e), § 87(2)(f) § 87(2)(b)'s actions (standing on the corner, looking around) were consistent with those of a drug dealer waiting to sell drugs to someone. § 87(2)(e), § 87(2)(f) When asked, Officer Louis stated that § 87(2)(b) did not appear to notice their police car. Officer Louis and Officer Vega decided to give § 87(2)(b) the “benefit of the doubt” and drive around the block and come back to see if § 87(2)(b) was still there when they returned. They did so, driving down Classon Avenue, and returned to the intersection less than five minutes later.

When they returned to the intersection, they observed § 87(2)(b) standing in the same spot. Officer Louis and Officer Vega observed § 87(2)(b) again for approximately two minutes. The officers then discussed it and mutually decided to stop § 87(2)(b) to issue him a summons for loitering. Officer Vega pulled over the RMP to the sidewalk where § 87(2)(b) was standing, and Officer Louis told § 87(2)(b) to approach the RMP and provide his ID. § 87(2)(b) remarked, “Oh, it’s you guys again.” Neither officer got out of the vehicle at this point or any point during their interaction with § 87(2)(b). § 87(2)(b) did provide his ID, but he was complaining and said that he was going to file a complaint. Officer Louis replied that § 87(2)(b) was free to do so. Though he was complaining, § 87(2)(b) quickly complied with the request for identification. Officer Louis did not feel that § 87(2)(b) presented any threat to his safety. When asked what he was doing on the corner, § 87(2)(b) replied something to the effect of, “What, I can’t stand here? It’s a free country.” The officers replied that he could not stand there indefinitely for no apparent reason.

At no point during the incident did Officer Louis or Officer Vega draw or point his gun at § 87(2)(b). Officer Louis stated that drawing and pointing his weapon while in the vehicle would have been a bad “tactical situation” and stated that, had he felt threatened, he would have exited the vehicle, drawn his weapon, and placed § 87(2)(b) against a nearby wall. Officer Louis stated that he was specifically trained to draw his gun outside of a vehicle. Officer Louis further pointed out that Officer Vega was on the phone with parole for most of the stop and pointed out that he would have had a hard time talking on the phone and pulling his gun at the same time.

Officer Vega asked § 87(2)(b) if he was still on parole, and § 87(2)(b) stated he was not. Officer Vega called the “24 hour parole” § 87(2)(b). Officer Vega left a message with § 87(2)(b)'s former parole officer notifying him that the officers had given § 87(2)(b) a summons. Officer Louis and Officer Vega had also done the same thing in the past when § 87(2)(b)

Officer Identification

Officer Vega was identified by name by § 87(2)(b) and Officer Louis was identified as Officer Vega's partner by the roll call and Officer Vega's statement. Both confirmed their involvement in this incident at their CCRB interviews.

Assessment of the Evidence

The officers' questioning and issuance of a summons to § 87(2)(b) is not in dispute. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Pleading of Allegations

Since § 87(2)(b) first stated that both officers pointed their weapons, then stated that only Officer Louis did so, the allegation of 'gun pointed' is being pleaded only against Officer Louis and an allegation of 'gun drawn' is being pleaded against Officer Vega.

The issuance of the summons is being pleaded against both officers, as they both testified that they made a joint decision to issue § 87(2)(b) the summons before pulling over to ask him for identification.

Allegation A: Officer Clifford Louis questioned § 87(2)(b)

Allegation B: Officer Carlos Vega questioned § 87(2)(b)

Officer Louis and Officer Vega both stated that they recognized § 87(2)(b) as someone they had dealt with in the past who they knew to have been on parole. They explained that the time of the incident, 10:00pm, was after the curfew for most parolees and, had § 87(2)(b) still been on parole, he would have been in violation of his curfew. § 87(2)(g)

it is recommended that **allegation A** and **allegation B** be *exonerated*.

Allegation C: Officer Clifford Louis pointed his gun at § 87(2)(b)

Allegation D: Officer Carlos Vega drew his gun.

§ 87(2)(g)

it is recommended that **allegation C** and **allegation D** be *unfounded*.

Allegation E: Officer Clifford Louis issued a summons to § 87(2)(b)

Allegation F: Officer Carlos Vega issued a summons to § 87(2)(b)

While Officer Louis and Officer Vega acted within their authority in requesting § 87(2)(b)'s identification to check his parole status, both stated that they also intended to issue him a summons for loitering at the time that they stopped him.

§ 87(2)(g)

Penal code 240.35 defines the crime of loitering and describes the specific actions that constitute that offense. Examples of such behavior include: remaining in or wandering around a public place for the purposes of begging, solicitation, or gambling; being in a public place while wearing an unnatural facial alteration or disguise; loitering around school, college, or camp grounds; and loitering around or sleeping inside a transportation facility. Officer Vega and Officer Louis (as well as § 87(2)(b) himself) stated that § 87(2)(b) was standing on the Northwest corner of Dekalb Avenue and Bedford Avenue looking around. § 87(2)(g)

OATH case law has held that, in order to reach a finding of bad faith, evidence must indicate that an officer “acted without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper” (*PD v. Dowd and Rose, 1990*). Officer Vega is a 12-year veteran of the NYPD and Officer Louis has been on the force for 5 years. § 87(2)(g)

§ 87(2)(g)

Inv. Brown: What was it about § 87(2)(b) for [the period of time that the officers observed him] that made you...how does that qualify as loitering?

Officer Vega: It’s a known drug-prone location, and he’s been arrested numerous times at the same location when he’s been observed selling drugs.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **allegation E** and **allegation F** be *substantiated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: